

25NNCV06805 25NNCV06805

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#20 - 1958 CALIFORNIA VILLA HOMEOWNERS ASSOCIATION, A CALIFORNIA NONPROFIT ASSOCIATION vs YANLIN DU

MOTION FOR JUDGMENT ON THE PLEADINGS

The motion is

granted in part and denied in part. Defendant

is to file and serve an amended answer within 20 calendar days after service of notice of entry of this order.

First Affirmative Defense—Failure to State a Cause of Action

Denied as moot. Plaintiff's

reply has withdrawn its request to foreclose this objection based solely on its designation as an affirmative defense.

Second Affirmative Defense—Lack of Standing

Granted with

leave to amend. "The Davis-Stirling Act governs an action to

enforce the recorded covenants and restrictions of a common interest

development. Civil Code section 5975

provides that the CC&Rs may be enforced as equitable servitudes and that in

an action to enforce the governing documents, the prevailing party shall be

awarded reasonable attorney's fees and costs." (Almanor Lakeside Villas

Owners Assn. v. Carson (2016) 246 Cal.App.4th 761, 773; Civ. Code, §

5975, subd. (c).)

The assertion that Plaintiff suffered no injury disputes Plaintiff's pleadings rather than alleging new matter. The remaining assertions do not identify a particular defect that deprives Plaintiff of authority to sue.

Third and Fourth Affirmative Defenses—Waiver and Estoppel

Granted with leave to amend. Waiver refers to the act, or the consequences of the act, of one side only, while estoppel is applicable where the conduct of one side has induced the other to take such a position that it would be injured if the first should be permitted to repudiate its acts. (*Wilcox v. Ford* (1988) 206 Cal.App.3d 1170, 1179–1180; *Insurance Co. of the West v. Haralambos Beverage Co.* (1987) 195 Cal.App.3d 1308, 1320 at fn. 6.)

“Waiver is an affirmative defense that must be pleaded with specificity and separately stated. In pleading waiver the defendant must set forth the facts upon which he bases his claim of waiver.” (*Meyer Koulisch Co. v. Cannon* (1963) 213 Cal.App.2d 419, 432; accord, *Richter v. Adams* (1937) 19 Cal.App.2d 572, 576.) “The burden of pleading facts which raises the issue of estoppel lies with the party who would estop the other party [citation], and for estoppel to be available it must be specially pleaded.” (*Larue v. Swoap* (1975) 51 Cal.App.3d 543, 551.) The pleading of a generic statement is insufficient.

Defendant's waiver defense alleges a failure to uniformly enforce the CC&Rs against other homeowners and express or implied acquiescence in Defendant's activities. Although Defendant identifies a general theory, she does not allege what right Plaintiff intentionally relinquished or what conduct manifested that relinquishment.

The estoppel defense alleges only unspecified acts, conduct, or omissions by Plaintiff upon which Defendant relied to her detriment. It does not identify the conduct inducing reliance, Defendant's resulting change of position, or the injury caused by that reliance.

Fifth Affirmative Defense—Selective or Discriminatory

Enforcement

Denied. At

the pleading stage, this allegation identifies both the challenged conduct and the asserted disparate treatment. Whether

Defendant can prove that other owners were similarly situated, that the conduct was comparable, or that Plaintiff acted arbitrarily presents factual questions beyond the scope of this motion. Applying liberal pleading principles, the defense provides fair notice of the issue.

Sixth Affirmative Defense—Failure to Follow Internal Procedures

Denied. Defendant's

defense identifies the governing documents/procedures and alleges noncompliance. Whether those procedures applied, were satisfied, or were excused cannot be determined from the Answer alone.

Seventh Affirmative Defense—Notice and Opportunity to Cure

Granted with

leave to amend. Civil Code section 5855 establishes the minimum due process requirements that associations must follow before imposing discipline or monetary charge on a member, including what the specific hearing notice and results letters must include. The defense does not identify the discipline or monetary charge allegedly governed by section 5855, the CC&R provision creating a pre-suit cure requirement, or the claims purportedly affected. Its generalized reference to the statute and CC&Rs does not give sufficient notice of the procedural bar asserted.

Eighth Affirmative Defense—Unclean Hands

Denied. The

defense identifies the asserted misconduct and connects it to Plaintiff's enforcement activity.

Ninth Affirmative Defense—Statute of Limitations

Granted with

leave to amend. A limitations defense may be pleaded generally, but the pleading must identify the section and subdivision relied upon when the statute is divided into subdivisions. (Code Civ. Proc., § 458.) The present defense does not satisfy that requirement.

Eleventh Affirmative Defense—Comparative Fault or Contributory Negligence

Granted with

leave to amend. The Eleventh Affirmative Defense alleges that Plaintiff's damages were caused or contributed to by Plaintiff, its agents, or third parties. It identifies no act or omission, responsible person, category of damages, or cause of action to which comparative fault allegedly applies.

Twelfth Affirmative Defense—No Entitlement to Injunctive Relief

Granted without

leave to amend. This affirmative defense merely traditional equitable grounds upon which an injunction may be denied. These allegations dispute Plaintiff's entitlement to a requested remedy; however, they do not constitute new matter defeating liability. Defendant may contest the elements necessary for injunctive relief under her general denial, but the contention is not a standalone affirmative defense. The motion is granted without prejudice to Defendant's ability to oppose Plaintiff's request injunctive relief.

Thirteenth Affirmative Defense—Reasonableness of Defendant's Conduct

Granted with

leave to amend. The Answer does not identify the challenged restriction or rule or the basis for alleged unreasonableness or improper adoption.

Fourteenth Affirmative Defense—Good Faith

Granted without

leave to amend. A generalized good-faith belief does not

independently defeat any of the causes of action pleaded in the First Amended Complaint.

Fifteenth Affirmative Defense—Reservation of Defenses

Granted without
leave to amend. The Fifteenth Affirmative Defense reserves
Defendant's ability to assert unidentified defenses revealed through discovery.
Such a reservation serves no purpose. A reservation of rights alleges no new matter
and is not an affirmative defense.

Prior Small Claims Proceeding

Denied as moot.